

TELECOM DISPUTES SETTLEMENT AND APPELLATE TRIBUNAL,

NEW DELHI

Dated 5th May 2026

Broadcasting Petition No. 495 of 2015

Manthan Broadband Services Pvt. Limited

....Petitioner

Versus

M/s Aviskar Cable Link Communications

.....Respondent

HON'BLE MR. JUSTICE RAM KRISHANA GAUTAM, MEMBER

For Petitioner : Mr. Vikrant Kumar, Advocate

For Respondent : Mr. Vineet Bhagat,
Ms. Aryaa Nagpal, Advocates

JUDGEMENT

1. This Petition, under Section 14, read with Section 14A, of the Telecom Regulatory Authority of India Act, 1997 (hereinafter referred to as "TRAI Act"), has been filed by Petitioner, M/s Manthan Broadband Services Pvt. Ltd., a Company incorporated under the Companies Act, 1956,

through its authorized representative Mr. Sib Sankar Chattopadhyay, against M/s Aviskar Cable Link Communications, a Cable operator, registered under the Cable television Networks (Regulation) Act, 1995, (hereinafter referred to as “Cable Television Act”), through its Proprietor Mr Swapnendu Mustafee, with a prayer for award of Rs. 32,53,898/- (Rupees Thirty Two Lakhs Fifty Three Thousand Eight Hundred Ninety Eight Only), outstanding towards the Subscription charges, payable by the Respondent, to the Petitioner till July, 2015.

2. In brief, the Petition contends that, petitioner is a Multi System Operator (MSO), operating in the State of West Bengal, Assam, Jharkhand, to receive signals of various free to air and pay channels from broadcasters, at its head end and re-transmit the same to the franchise cable operators, affiliated to it, for onward transmission to their respective subscribers. Mr. Sib Sankar Chattopadhyay, is working as a Director of Petitioner Company, and is duly authorised to file this Petition, vide Board Resolution, dated 03.07.2015, annexed as Annexure P-1 to Petition. Respondent, a Cable Operator at Sagarbhangra, Distt – Burdwan, Durgapur, carrying its cable business to its end subscribers in that area, entered into a Subscription Agreement

with Petitioner, on 03.09.2008, Annexure P-2 to Petition, with a covenant of payment, as subscription fee in the tune of Rs. 48,320/- (Rupees Forty Eight Thousand Three Hundred Twenty Only) to Petitioner, for availing its signal. As per this agreement, Respondent was to avail the signals of Petitioner, for a monthly subscription fee of Rs. 48,320/- (Rupees Forty Eight Thousand Three Hundred Twenty Only) and this agreement was further continued, vide Continuation Agreement, dated 10.01.2012, after mutual discussions, in between. At the initial discussion, while signing Subscription Agreement, dated 03.09.2008, the oral declaration of 1933 subscribers/ points, was made by Respondent, and the rate at that time, of Rs. 25/- per subscriber/ point, amounted to Rs. 48,320/- (Rupees Forty Eight Thousand Three Hundred Twenty Only), which was written in above agreement. This agreement, dated 10.01.2012, and the Continuation Agreement, is Annexure P-3 to Petition.

3. The services of Petitioner was being availed by Respondent, but, it remained totally irregular in making its payments of the monthly subscription fee, resulting the outstanding subscription fee, amounting to arrear of Rs. 26,87,799/- (Rupees Twenty Six Lakhs Eighty Seven

Thousand Seven Hundred Ninety Nine Only) till March, 2013. In spite of repeated requests, it was not cleared. Hence, a notice, dated 22.03.2013, under Regulation 4.1 of the Telecommunication (Broadcasting and Cable Services) Interconnect Regulation, 2004, was got issued by Petitioner to Respondent, calling upon the Respondent to clear its dues. This notice, dated 22.03.2013 is Annexure P-4 to Petition. A reply, to this by letter, dated 29.04.2013, was with false contention, that the notice was not signed by authorised signatory, and it was not containing supporting documents with it. Nothing was said regarding the outstanding dues, claimed by Petitioner in this reply, dated 29.04.2013. This reply is Annexure P-5 to Petition.

4. A meeting was held, in between, at Muchipara Control Room in presence of Mr Ashutosh Nigam, representative of Petitioner Company and Respondent represented by Mr Swapnendu Mustafee, on 11.07.2014, in which it was agreed that another meeting will be organised at Kolkata on 14.07.2014. A question of non-payment of dues from September, 2008, was raised in this meeting, wherein, Respondent suggested to sign afresh agreement, and Respondent would pay from the month i.e., August, 2014. But, Mr Swapnendu

Mustafee refused to sign the Minutes of the meeting, dated 11.07.2014, which is Annexure P-6 to Petition.

5. The meeting, dated 19.07.2014, held at the Head Office of Petitioner Company, between Petitioner and the Respondent, resulted in Mutual Agreement, a Memorandum of Understanding (MOU) and a Statement of Account of Respondent, duly signed by Mr Swapnendu Mustafee, proprietor of Respondent – LCO on 19.07.2014. Wherein, the Statement of Account clearly reveals, the total outstanding of Rs. 36,72,558/- (Rupees Thirty Six Lakhs Seventy Two Thousand Five Hundred Fifty Eight Only), towards outstanding Subscription Charges, due in favour of Petitioner against Respondent, from September, 2008 till July, 2014.
6. The subscription charges were subsequently raised up to Rs. 1,50,000/- (Rupees One Lakh Fifty Thousand Only) per month. But, because of discussion, in between, and agreement reached, this amount was reduced to rate of Rs. 98,000/- (Rupees Ninety-Eight Thousand Only), per month till the implementation of DAS. This MOU dated 19.07.2014, alongwith Statement of Account, is Annexure P-7 to Petition. A cheque

dated 19.07.2014, bearing No. 051060, amounting to Rs. 36,72,558/- (Rupees Thirty Six Lakhs Seventy Two Thousand Five Hundred Fifty Eight Only), was handed over by Mr Swapnendu Mustafee to the Petitioner, at the time of understanding. Petitioner produced the said cheque at its Canara Bank account, on 21.07.2014. But, owing to Respondent's communication, with its full reversal, with agreed terms of MOU, signed on 19.07.2014, and a communication dated 21.07.2014, made with a direction for 'Stop Payment Advice' to banker concerned, the same was not honoured. This cheque, dated 19.07.2014, pay-in-slip dated 21.07.2014, are Annexure P-8 and Annexure P-9 and letter of Respondent dated 21.07.2014 is Annexure P-10 to Petition.

7. The Petitioner was left with no other option, but to issue a Public Notice, dated 24.07.2014, through two Newspapers, as per Regulation 4.3, regarding disconnection of signals after 21 days of the said notice. And a notice, dated 26.07.2014 to Respondent, under Regulation 4.1 regarding proposed disconnection for outstanding amount of subscription charge. These are annexed with Petition as Annexure P-11 (Colly) and Annexure P-12. The letter of DSP Cooperative Bank Limited, Muchipara Branch, Durgapur is Annexure P-13 to Petition. Thereafter,

a meeting was held between Petitioner and Respondent, on 31.07.2014 at Durgapur, wherein, payment in instalment for clearing outstanding dues, were assured with a transfer of Rs. 5,00,000/- (Rupees Five Lakhs Only) to the Petitioner, by way of RTGS on 01.08.2014. A letter received by Petitioner, on 06.08.2014, with a prayer of Respondent, for holding another meeting, for resolving the dispute, is Annexure P-14 to Petition, was sent by Respondent. In subsequent meeting, held on 26.09.2014, Respondent was directed to make compliance of MOU, dated 19.07.2014, and to clear its outstanding subscription dues, followed by future Subscription Charges payment. After a seven months gap, a letter dated 25.04.2015, of Respondent was with fabricated, misleading facts of alleged coercion, coupled with threat of disconnection and raising of false outstanding subscription dues, against Respondent. Rather, there was an agreement with respect to Rs. 20,000/- per month, being paid by Respondent, towards monthly subscription charges, with effect from January, 2015. This letter of Respondent is Annexure P-15 to Petition. Reply to this letter is Annexure P-16 to Petition. The contention of Respondent was negated, and outstanding Subscription Dues in the tune of Rs. 36,72,588/- (Rupees Thirty Six Lakhs Seventy Two Thousand Five Hundred Eighty Eight Only) was

pressed. The Respondent continued to receive signals from Petitioner, remained irregular in making payment, resulting an outstanding of Rs. 32,53,898/- (Rupees Thirty Two Lakhs Fifty Three Thousand Eight Hundred Ninety Eight Only), as on 31.07.2015, towards Subscription Charges, intended to shift to some other MSO, to cause huge loss to Petitioner. A cause of action had arisen, within the territory of this Tribunal, within limitation period. Hence, this Petition with above prayer, for a direction to Respondent to make payment to the Petitioner Rs. 32,53,898/-, towards outstanding Subscription Charges, till July, 2015 and interest accrued over it, @ 18% per annum, with a restraint order for not taking TV Channels from any other competing MSO, until clearing the dues owed to Petitioner, was got filed.

8. The reply was regarding the spelling and pronunciation of name of Respondent Company and no liability of Respondent towards alleged claim. Petitioner is concealing the original agreement entered, in between, under which subscription amount, was negotiated and it was fixed at Rs. 20,000/- from January, 2015 onwards. Rather, false and fabricated letters, dated 22.03.2013, 26.07.2014 & 30.04.2015, are to extort money from Respondent and compelled to settle the matter.

Petitioner, vide its letter, dated 30.04.2015, had clearly and categorically refused to renew/ enter into a fresh Agreement, with the Respondent for the year 2015. Respondent has been sustaining losses because of the malafide acts of the Petitioner by charging Respondent at a rate, which is a manipulated rate and much higher than what Petitioner has been charging to other Local Cable Operators. The alleged claim saying to be due for period of 2008 till 2014, is otherwise barred by limitation, because of being more than four years standing.

9. Subscription Agreement was first entered, on 03.09.2008 wherein, rate of Rs. 25/- per subscriber, was mutually agreed between the parties, for which Respondent made payment, accordingly. Till the year 2007, all LCOs in the area of Durgapur, were associated with 'Sanhati Infocom', the MSO, who had been charging the Respondent and other LCOs at the rate of Rs. 85/- per subscriber, and the list of subscribers/ LCOs of Sanhati Infocom and their respective SLR, is annexed as Annexure - P/1 of reply. However, in year 2008, Sanhati Infocom closed down in or around the month of June' 2008 and the Respondent with other LCOs shifted to one 'Navoneel Netcom Services Private Limited', on about the same subscription amounts. In that circumstances, Petitioner,

Manthan Broadband Services, approached the Respondent and other LCOs in the area of Durgapur, with an offer to re-transmit the pay channels to them at a discounted price of Rs. 25/- per subscribers, as against Rs. 85/-, being paid by the Respondent and other LCOs. The Petitioner entered Durgapur market, through the Respondent and other LCOs of the area, by connecting them at the rate of Rs. 25/- per subscriber, because of which, all LCOs switched off with the previous one, and shifted over to Petitioner's Network. Accordingly, agreements were entered with LCOs, with a specific mention of charge at the rate of Rs. 25 per subscriber, which continued upto 2015. But, in respect of present Respondent, the Petitioner is alleging dues of Rs. 32,53,898/-, as outstanding subscription charges, payable till July, 2015, on baseless contention, which is to be proved by it. The Petitioner compelled Respondent, to enter into another agreement, with a monthly subscription of Rs. 1,50,000/-, by blackmailing Respondent, exercising coercion and force, by switching off the signals to the Cable TV Network of the Petitioner, by abusing the dominant position. Whereby, Petitioner had singled out the Respondent, to unfair terms and demands, to harass and humiliate Respondent. Particularly, for discouraging it from being a rival MSO against Petitioner, in the area of

Durgapur. Parties had entered into an agreement, dated 03.09.2008, with a mutual understanding and mentioning of subscription agreement, but, it was never agreed to be Rs. 48,320/- per month. Rather, it was agreed to be at the rate of Rs. 25/- per subscriber per month, to be paid by Respondent, and it ranged upto Rs. 12,000/- only. No disclosure was ever made by Respondent for its subscriber numbers/ points in the tune of 1933, nor it was proved. Parties got renewed/ entered by another agreement, dated 10.01.2012, wherein the rate of Rs. 25/- per subscriber, was carried forward by the parties.

10. The alleged rise for Rs. 1,50,000/- per month, and then reduction, is with manipulation, as it never happened so. Respondent had been making payment of the subscription fee from time to time to Petitioner, as was agreed, in between, resulting no outstanding dues towards Respondent, in favour of Petitioner. No meeting with the Respondent, was held on 11.07.2014, as is being said by Petitioner. No question of refusing to sign the Minutes of Meeting of above meeting by Mr Swapnendu Mustafee arises. On the contrary, Petitioner, in continuation of harassment, by disconnection and disruption of signals, compelled Respondent to meet with Petitioner on 19.07.2014, wherein, disconnection with effect from 8 P.M. of 18.07.2014, that too,

without any prior notice, was raised. Petitioner had without any justified ground stopped signals to harass, humiliate and victimize Respondent, thereby, to put him in extreme inconvenience and pressure, compelling Respondent having with no other option, but to meet Petitioner on 19.07.2014 in its Office, wherein, threat and blackmail was extended, and few blank papers, in addition to two other documents, and a cheque of Rs. 36,72,558/-, was got signed and obtained by Petitioner. No Minutes were got prepared, nor Respondent ever agreed to the terms and conditions of alleged agreement, dated 19.07.2014, nor those were with any negotiation, nor there was any covenant for charging Rs. 98,000/- per month, till the implementation of DAS. False and baseless notice, under Regulations 4.1 as well as 4.2, were got issued by Petitioner. The cheque was advised to be not paid by Bank. Under coercion and for protecting its signals, Respondent was constrained to arrange some money and to make payment of Rs. 5,00,000/- to Petitioner, for amicable solution, for which request was made to Petitioner for another meeting for reconciliation of accounts. Hence, this Petition was prayed to be dismissed with cost.

11. Replication cum rejoinder by Petitioner, was with negation of the contention of reply and reiteration of contention of Petition.

12. It was not denied that vide subscription agreement, dated 03.09.2008 the rate of Rs. 25/- per subscriber, was not mutually agreed between the parties. Rather, these charges were only for Free to Air Channels. But, as the Respondent was also availing the pay channels, for which agreed charges were Rs. 48,320/- (Rupees Forty Eight Thousand Three Hundred Twenty Only). No coercion, threat or fabrication was ever made by Petitioner, rather, the allegations are being made by Respondent with ulterior motive to get rid of its outstanding liabilities towards outstanding subscription charges due against it.

13. On the basis of pleadings, Court of Registrar, vide its order, dated 15.01.2016, framed following issues:

- (i) Whether the Petition is maintainable in terms of law of limitation?
- (ii) Whether the Respondent is liable to pay the monthly subscription fee of Rs. 48,320/- per month to the Petitioner as per the agreement dated 03.09.2008 and the continuation agreement dated 10.01.2012?

(iii) Whether the Respondent signed the Memorandum of Understanding dated 19.07.2014 under coercion and is not bound by the terms thereof?

(iv) Whether the Respondent made certain payments to the Petitioner under coercion?

(v) Whether the Petitioner is entitled to an amount along with interest as prayed in the Petition?

(vi) Whether the Petitioner agreed to reduce the subscription charges to Rs. 20,000/- per month for supplying the signals to the Respondent from January, 2015?

14. Evidence by way of affidavit, on behalf of Petitioner, of Mr. Suvo Prasanna Chatterjee, General Manager (Sales) with Petitioner Company, authorised witness and of Mr. Swapnendu Mustafee, Respondent's witness, by way of affidavit got filed. Learned Counsels for both side cross examined those witnesses respectively.

15. Written submissions for and on behalf Petitioner as well as Respondent got filed.

16. Heard Learned Counsels for both side and gone through materials placed on record.

17. Hon'ble Apex Court in Anil Rishi v. Gurbaksh Singh-AIR 2006 SC 1971 has propounded that onus to prove a fact is on the person who asserts it. Under Section 102 of The Indian Evidence Act, initial onus is always on the plaintiff to prove his case and of he discharges, the onus shifts to the defendant. It has further propounded in Premlata Vs. Arhant Kumat Jain- AIR1976 SC 626 that where both the parties have already produced whatever evidence they had, the question of burden of proof ceases to have any importance. But while appreciating the question of burden of proof and misplacing the burden of proof on a particular party and recording of findings in a particular way will definitely vitiate the judgement. The old principle propounded by Privy Council in Lakshman v. Venkateshwarloo- AIR 1949 PC 278 still holds good that burden of proof on the pleadings never shifts, it always remains constant. Factually proving of a case in his favour is cost upon plaintiff when he fulfills, onus shifts over defendants to adduce rebutting evidence to meet the case made out by plaintiff. Onus may again shift to plaintiff. Hon'ble Apex Court in State of J & K

Vs. Hindustan Forest Co. (2006) 12 SCC 198 has propounded that the plaintiff cannot obviously take advantage of the weakness of defendant. The plaintiff must stand upon evidence adduced by him. Though unlike a criminal case, in civil cases there is no mandate for proving fact beyond reasonable doubt, but even preponderance of probabilities may serve as a good basis of decision, as was propounded in M Krishan Vs. Vijay Singh- 2001 CrLJ 4705. Hon'ble Apex Court in Raghvamma Vs. A Cherry Chamma- AIR 1964 SC 136 has propounded that burden and onus of proof are two different things. Burden of proof lies upon a person who has to prove the facts and it never shifts. Onus of proof shifts. Such shifting of onus is a continuous process in evaluation of evidence.

18. This Petition, before this Tribunal, is a civil proceeding and in civil proceeding, the preponderance of probabilities, is the touchstone for making a decision, as against strict burden of proof, required in criminal proceeding.

19. Issue No.1 - This Petition is of year 2015. The reply is with contention of bar of this claimed relief, because of Law of Limitation, whereas, in

written submission, the only contention is “the Respondent asserts that the claims made by Petitioner are time-barred, exceeding the statutory limitation period of three years”. But, the undisputed fact is of making payment in the tune of Rs. 5,00,000/-, via RTGS, on 01.08.2014, by Respondent to Petitioner. Rs. 7,00,000/- deposited by Respondent, in the account of Petitioner, in December, 2014. Deposit of Rs. 4,00,000/- , in the account of Petitioner, in the year 2015. These facts are undisputed one. This is being further added by Exhibit PW-1/17 wherein, debt owed by Respondent was also admitted on every account, when Respondent had requested the Petitioner to sort out the matter across the table. Hence, the claim being made, the notice of disconnection issued, the legal notice to Respondent issued, then subsequent payment, admittedly, made by Respondent, written as above, with a further prayer for sitting at a table, for coming across a resolution, is of this admission towards liability, accrued in favour of Petitioner, and it extended the period of limitation by above deposit made by Respondent. Hence, this Petition is not barred by Limitation. Accordingly, this issue is being decided negatively, i.e., is being decided in favour of Petitioner.

20.Issue No.2 - The written submissions, filed by Respondent is with specific chronology of facts given in it, with specific mention of execution of subscription agreement, dated 03.09.2008. The Petitioner, being Multi System Operator, operating in the State of West Bengal, Assam, Jharkhand. Respondent being a Cable Operator, at Sagarbhangra, District-Burdwan, Durgapur, carrying its cable business, had entered into a subscription agreement with Petitioner on 03.09.2008, and this subscription agreement is Annexure P-2 to Petition. This fact has not been disputed by Respondent. Rather, the covenant of it, has been disputed. Now, the agreement, which is undisputed, and has been proved by PW-1, and marked at PW-1/2, is with a contention, that Respondent was desirous of obtaining and availing the services and facilities, extended by Petitioner. And as per Clause 7 of the agreement, the Respondent was to pay Rs.25/-, per subscriber only, for Free to Air Channel, specifically written in this covenant at Page 18. And this subscription agreement, dated 03.09.2008, was extended and continued as per parties entered into a continuation agreement, dated 10.01.2012, with a specific subscription dues per month, at the fix rate of Rs. 48,320/- in this written document, admittedly, signed by both side, and proved as Exhibit PW-1/3, by

Petitioner's witness. Now, the covenant of this agreement is being disputed, on the basis of alleged in-discrimination, and scenario under which, Respondent and other LCOs entered into business with Petitioner at the rate of alleged Rs. 25/- per point, has been said by Learned Counsel for Respondent. But, this burden was upon Respondent, to prove the said covenant having no mention in the agreement entered, in between, and for this, the single testimony of Respondent's witness is there, i.e., oath against oath is there. But, the averment being made is being proved of no probability in the circumstances, that neither this was challenged at any forum, either before this TDSAT Tribunal, or to Police Officer to represent the alleged coercion and torture, under which the alleged documents were got forcibly signed by Petitioner. But, nowhere, it was ever made or attempted to be made by Respondent.

21.A notice, Exhibit PW-1/4, to the Respondent in accordance with Regulation 4.1 of the Telecommunications (Broadcasting and Cable Services), Interconnect Regulation, 2004, was issued for making payment towards outstanding subscription charges, in the tune of Rs. 26,67,799/-, on 22.03.2013, and it was got replied by Respondent, on

29.04.2013, but, in this reply, Respondent failed to dispute the outstanding amount claimed. Rather, it levelled a vague allegation that the authorised representative of Petitioner did not sign the notice, dated 22.03.2013. Holding of subsequent meeting, in between, is undisputed. Signing of the Memo of Understanding is undisputed. Payment of cheque, is undisputed. And this all has been claimed to be made under the coercion. And those documents were blank paper, which were subsequently, got manipulated. But, at no point of time, this criminal Act was ever reported by Respondent, nor any proceeding before this TDSAT, was got initiated with above contention. Rather, the burden of proof of this coercion and manipulation was upon Respondent, and it had put its Respondent witness 1, under cross examination, and Mr. Swapnendu Mustafee, Respondent's witness, in his cross examination, held on 29.03.2017, as well as 30.03.2017, has categorically admitted the execution of agreement, dated 10.01.2012, receiving of notice, dated 22.03.2013, execution of Memorandum of Understanding, signed between the parties, on 19.07.2014, signing over the Statement of Account on 19.07.2014, and this Statement of Account of Respondent, having been marked as Marked 'X' as on 20.12.2016. Issuing of the Cheque, bearing No. 051060, dated

19.07.2014, receiving of disconnection notice, dated 26.07.2014 is there. Now, to prove the contention otherwise, was a burden upon Respondent. And onus to prove this fact was upon Respondent, for which there is no evidence, except the Statement on Oath of this Respondent witness Swapnendu Mustafee alone.

22. Respondent had not denied agreement, dated 03.09.2008. Rather, Respondent's witness Mr. Swapnendu Mustafee, the proprietor of Respondent, in his cross examination, has admitted that he had signed the continuation Agreement, dated 10.01.2012, and from the bare perusal of the second schedule of this agreement, dated 10.01.2012, reveals the subscription dues, agreed per month was in the tune of Rs.48,320/- The acknowledgment of dues was there by way of payment of Rs. 5,00,000/-, through RTGS on 01.08.2014, subsequent deposit of Rs. 7,00,000/- and Rs. 4,00,000/- by Respondent. A request was there for coming on a table, for sorting out the disputes. Hence, the admitted position written, as above, and the oral testimony of PW-1, having no material variance in his cross examination with examination in chief, filed by way of affidavit of Petitioner's witness, is in full support of the contention of Petition. Hence, the monthly subscription fee was at the

rate of Rs. 48,320/- per month, payable by Respondent to Petitioner, for availing its services, as per undisputed agreement, dated 03.09.2008, and the agreement of continuation, dated 10.01.2012. Accordingly, this issue is being decided in favour of Petitioner.

23.Issue No.3 - Signing of the Memorandum of Understanding on 19.07.2014, issuing of the cheque in the tune of Rs. 36,72,558/-, on 19.07.2014, subsequently, stopped payment advice to their Bank made by Respondent, and these documents proved as Exhibit PW-1/8, Exhibit PW-1/9, Exhibit PW-1/10, are being admitted by Respondent in its testimony. But, the same is being said to be under coercion to protect signal were got issued. While being cross examined, Mr Swapnendu Mustafee RW-1, in his cross examination, has admitted the execution of agreement, dated 10.01.2012 receiving of the notice dated 22.03.2013, execution of Memorandum of Understanding, signed between the parties, on 19.07.2014, signing of the Statement of Account of Respondent Company, on 19.07.2014, issuance of Cheque bearing No. 051060, dated 19.07.2014, receiving of the disconnection notice, dated 26.07.2014, and no complaint at any forum, towards alleged coercion and fabrication of having blank documents signed, got

cheque, executed under threat or force was ever raised by this witness. Rather, payment of Rs. 5,00,000/-, as a part payment, via RTGS on 01.08.2014, deposit of Rs. 7,00,000/- in account of Petitioner in December, 2014, deposit of Rs. 4,00,000/- in account of Petitioner in 2015, a request by Respondent for coming across a table for sorting out matter by its letter, proved as Exhibit PW-1/17, with no challenge before this Tribunal, or any Police Officer for above threat and coercion is there. Respondent had never challenged disconnection notice, dated 26.07.2014. It had not filed a Criminal case or a Civil case, against Petitioner, for alleged coercion or threat of disconnection. Hence, the very burden, which was upon Respondent, to prove the alleged fraud, mis-representation or undue influence could not be borne by Respondent. Respondent had failed to discharge this onus, to prove that Petitioner had coerced and threatened the Respondent to sign the Memorandum of Understanding, dated 19.07.2014, having blank paper signed, having got cheque for that much claimed amount under threat or coercion.

24. The single witness is there and he had admitted the execution of those documents by him. Hence, it ought to be proved by some additional

evidence, but the onus to proof had not been exhausted by Respondent. This Issue No. 3 is being decided in favour of Petitioner.

25. Issue No. 4 - On the basis of discussions made in Issue No. 3, this burden was also lying upon the Respondent, to prove the alleged coercion said to be exerted by Petitioner. But it failed to prove it. This issue is being decided in favour of Petitioner.

26. Issue No. 6 - This was said by Respondent in its reply and the issue was raised on the basis of reply made by Respondent. Respondent strongly disputed the Petitioner's claim of a monthly rate of Rs. 48,320/-, citing the original subscription agreement, dated 03.09.2008. The credibility of 1933 subscribers was also challenged, and it was said by Respondent's witness in his statement. The arithmetical calculation, and missing of Annexure II in the agreement, was said to be raised with Petitioner's witness. And the alleged agreement with regard to Rs. 25/- per point, was being vehemently argued. But, from the very perusal of a written agreement, un-disputedly, executed, in between, it is apparent that this Rs. 25/- per subscriber, is specifically said to be for Free to Air Channel, and not for paid channel. The monthly subscription

amount, in the tune of Rs. 48,320/- is very well there, in the agreement and has been proved by Petitioner's evidence. Hence, the Statement of Account of Respondent, admittedly, signed by Respondent's witness is there on record, and this establishes the claim of Petitioner. The issuance of cheque, in the tune of Rs. 36,72,558/-, subsequently, advised for stop payment, is also in substantiation of above fact. The subsequent payment made via RTGS, as well as deposit made by Respondent, having mention in the Statement of Account, is also substantiating the contention of Petition. Hence, the alleged contention of reducing subscription charges to the tune of Rs. 20,000/- per month, for supplying the signals to the Respondent, from January, 2015 could not be proved, as per probability of preponderances. Accordingly, this issue is being decided against Respondent.

27. On the basis of above discussions, the Petitioner had proved its case by its evidences for outstanding subscription dues in the tune of Rs. 32,53,898/-, (Rupees Thirty Two Lakhs Fifty Three Thousand Eight Hundred Ninety Eight Only), payable till July, 2015. So far as interest is concerned, this Tribunal in many decided Petitions, and considering the present financial fiscal scenario, had repeatedly awarded simple

interest @ 9%, for the pendent lite and future period, i.e., till actual date of payment.

28.Hence, this Petition merits to be decreed, along with pendente lite and future interest, @ 9% p.a., simple interest, an interest, which is being very often awarded in present fiscal scenario, by this Tribunal, in many other previously decided petitions.

ORDER

Petition is being decreed with cost. Respondent is being directed to make deposit of Rs. 32,53,898/- (Rupees Thirty Two Lakhs Fifty Three Thousand Eight Hundred Ninety Eight Only), due till July, 2015, towards subscription charges, with addition of pendente lite and future interest, simple interest @ 9% p.a., over it, till date of realisation, within two months from the date of judgment, for making payment to petitioner.

Interim order or MAs, if any, stood disposed of.

Formal order/ decree be got prepared by office, accordingly.

.....
(Justice Ram Krishana Gautam)
Member

05.05.2026
/NC/

